

Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

July 13, 2021

Megan Sutton
Director of Operations
Lee, Rice and Adams

Dear Ms. Sutton:

This letter confirms that Lee, Rice and Adams has retained Ashcombe Advisory Partners to lead its communications through the matter now in front of it, and it sets out what we will do, who will do it, what it costs, and the terms we both agree to. Crisis work turns on being clear before you are asked to be, and this letter is the first place we get to be clear with each other. If anything below does not match the conversation we had, tell me before you sign rather than after.

Scope of the Engagement

The engagement is a single body of work: to help Lee, Rice and Adams say the right thing, to the right people, in the right order, while a difficult situation is live and afterward as it settles. That means a position we can defend, a small set of messages agreed in writing, and the discipline to hold to them when the pressure is to improvise. We are not here to decide the underlying matter or to speak for you. We are here to make sure that what you choose to say is said the same way twice and lands where it should, and that the people who speak for the company are never left guessing at the current line.

Our approach in this kind of work is plain, and we have used it for years. We start by getting the facts straight and the audiences named, because a message built on a shaky fact does more harm than silence. From there we agree the core lines and a holding position in writing, so that no one on your side is caught inventing an answer in the moment. We prepare for the questions we can see coming and the two or three we hope never arrive. Through the live period we stay close and reachable, and we would rather you call us with a small thing early than sit on a large one until it has grown.

The Team

Amy Carter will carry this engagement day to day and is your point of contact for anything of substance. She checks every claim against its source before it goes near a draft, which is exactly the habit this work rewards, and she is the person who will turn a worry you raise in the morning into a concrete step by the afternoon. When you need something moved, go to Amy Carter first.

Nancy Suarez will draft and shape the messaging itself. She has a good ear for the line that actually lands rather than the one that merely covers the point, and she will tell you plainly when a wording is doing less than you think it is. Between Nancy Suarez and Amy Carter you will always know what has changed and what is still open.

I lead this firm and I read the work that leaves it. I will not be on every call week to week, but I am reachable directly, and in a matter like this one I expect to be. If the work is not going the way you need it to, I would far rather hear it from you first than read about it later.

Fees and Payment

Our fee for this engagement is \$46,500, fixed at the outset and quoted as a single figure rather than a rate against hours. We work to a fixed fee because it keeps our attention on the outcome instead of the clock, and because you should be able to call us with a question without watching a meter run. The fee is billed in equal installments across the term, the first on commencement. Reasonable out-of-pocket costs that you approve in advance, such as travel to meet your stakeholders or the production of finished materials, are billed at cost and itemized on each invoice. Invoices are payable within thirty days of receipt.

Term and Termination

The engagement commences on July 23, 2021 and runs approximately eight months, which is the basis on which we have planned the work, though crisis timelines rarely keep to the calendar and we will flag it early if the matter demands more or less. Either of us may end the engagement on fifteen days' written notice. If you end it, you owe the installments that have fallen due as of that date and the approved costs incurred to it, and nothing further. If we end it, which we would do only if the work as agreed had become work we could not do honestly, we will return any fee already paid for work not yet performed.

Confidentiality

Discretion is the whole of this work. We will treat your internal information, your plans, and the fact and content of this engagement as confidential, and we will use anything you tell us about Lee, Rice and Adams that is not already public only to do the work you have retained us for, sharing it no further than the people on each side who need it. We ask the same of you regarding our methods and our materials. Where a statement or a disclosure carries its own timing, we follow yours and not our own convenience.

Limitation of Liability

We will carry out this engagement with the care and skill customary in our profession. We do not control how a reporter frames a story, how an audience receives a message, or how a situation moves on a given day, and we do not warrant a particular result, because the parts that decide it are not ours to command. Our total liability under this engagement, on any theory, is limited to the fees actually paid to us for it, and neither of us is liable to the other for indirect or consequential loss. Nothing in this paragraph limits liability for fraud or willful misconduct, and nothing should.

Governing Law

This letter is the entire agreement between us on this engagement and replaces anything said or drafted before it. It is governed by the law of the state in which this firm keeps its principal office, and any dispute we cannot settle between ourselves goes to the courts sitting in that state, to whose jurisdiction we each consent. Amendments take effect only in writing signed by both of us.

Acceptance

If this letter reflects our agreement, please sign below and return one copy to me. Amy Carter will be in touch within the week to set the kickoff and to agree the first pieces of work. We do not take a matter like this lightly, and I am glad Lee, Rice and Adams has asked us to stand with you through it.

Very truly yours,

Julie Hill

Managing Partner

Date: July 13, 2021

Megan Sutton

Director of Operations, Lee, Rice and Adams

Date: July 13, 2021